COMMONWEALTH OF MASSACHUSETTS
Appeals Court

No. 2022-P-0300

CASSANDRA FERREIRA,

Plaintiff-Appellee

v.

LAURAL CHARLAND & OTHERS,

Defendants-Appellant

On Appeal from the Housing Court Department, Western Division

May 16, 2022

BRIEF OF THE DEFENDANT-APPELLANT LAURAL CHARLAND

COMMUNITY LEGAL AID
Attorneys for Laural Charland

Gabriel L. Fonseca, BBO #706870
Community Legal Aid
One Monarch Place, Ste. 400
Springfield, MA 01144
Tel: 413-686-9007
gfonseca@cla-ma.org

TABLE OF CONTENTS

I. STATEMENT OF THE ISSUES 7

II. STATEMENT OF THE CASE 7

A. Nature of the Appeal 7

B. Procedural History 8

III. STATEMENT OF FACTS 10

IV. SUMMARY OF ARGUMENT 12

V. ARGUMENT 14

A. The Landlord's Tender of Money Did Not Moot Ms. Charland's Claim or Defense Because the Return of The Money Offered Only Partial Relief. 14

1. By Its Own Terms, §8A's Defense to Possession is Triggered By a Violation of Law, Not an Accounting of the Monies Due. …. 16

2. The Housing Court Retained the Ability to Award Possession Because §8A Provides Separate And Independent Relief, i.e. Possession. 19

B. Ms. Charland Did Not Release, Waive, or Otherwise Surrender Her Claim or Defense Because She Never Demonstrated Intent to Relinquish Her Right to Possession. 22

1. Ms. Charland Did Not Release Her Claim or Defense Because the Parties Never Reached a "Meeting of The Minds." 23

2. Ms. Charland Did Not Waive Her Right to Possession Because Her Conduct Never Indicated an Intentional Relinquishment of That Right. 24

3. Ms. Charland Did Not Otherwise Surrender Her Claim or Defense Because the Parties Never Entered an "Accord" That The Landlord Could Have "Satisfied" by Tendering Payment. …. 25

VI. CONCLUSION 26

ADDENDUM 27

Order After Trial, June 25, 2021 27

Docket from Case No. 20-SP-1676 (August 30, 2021 Entry of Judgment) 30

G.L. c.186, §15B 40

G.L. c. 186, §22 55

G.L. c.239, §8A 67

Cruz v. Norat-Reyes, 17-SP-181, March 1, 2017 72

Certificate of Compliance 77

Certificate of Service 78

TABLE OF AUTHORITIES

Cases

Bais Yaakov of Spring Valley v. ACT, Inc., 798 F.3d 46, 92 Fed. R. Serv. 3d 453 (1st Cir. 2015) 15

Barron Chiropractic & Rehabilitation, P.C. v. Norfolk & Dedham Group, 469 Mass. 800, 805, 17 N.E.3d 1056 (2014) 20

BourgeoisWhite, LLP v. Sterling Lion, LLC, 91 Mass. App. Ct. 114, 71 N.E.3d 171 (2017) 20, 24

Bridgewater State Univ. Fdn. v. Assessors of Bridgewater, 463 Mass. 154, 972 N.E.2d 1016 (2012) 14

Brown v. City of Cambridge, 85 Mass. 474, 3 Allen 474 (1862) 24

Campbell-Ewald Co. v. Gomez, 577 U.S. 153, 136 S. Ct. 663 (2016) … 20

Castenholz v. Caira, 21 Mass. App. Ct. 758, 490 N.E.2d 494 (1986) 18

Chafin v. Chafin, 568 U.S. 165, 133 S. Ct. 1017 (2013) 14, 19

Cormier v. Worcester Consol. St. Ry. Co., 234 Mass. 193, 125 N.E. 549 (1919) 24

Cruz v. Norat-Reyes, 17-SP-181, March 1, 2017 (Housing Ct., Western Div.) 18, 27, 72, 73

Cuddy v. A & E Mechanical, Inc., 53 Mass. App. Ct. 901, 757 N.E.2d 284 (2001) 25

Gammella v. P.F. Chang's China Bistro, Inc., 482 Mass. 1, 120 N.E.3d 690 (2019) 20

Genesis Healthcare Corp. v. Symczyk, 569 U.S. 66, 133 S. Ct. 1523 (2013) 21

Henry v. Bozzuto Management Company, 98 Mass. App. Ct. 690, 159 N.E.3d 701 (2020) ..... --

I & R Mechanical, Inc. v. Hazelton Mfg. Co., 62 Mass. App. Ct. 452, 817 N.E.2d 799 (2004) 23

Knox v. Service Employees, 567 U.S. ___, 132 S. Ct. 2277, 183 L. Ed. 2d 281 (2012) 14

Mach. Works, Inc. v. Machine & Elec. Consultants, Inc., 444 Mass. 768, 831 N.E.2d 875 (2005) 24

McGrath v. Mishara, 386 Mass. 74, 434 N.E.2d 1215 (1982) 19

Meikle v. Nurse, 474 Mass. 207, 49 N.E.3d 210 (2016) 13, 16, 17, 22

Meyer v. Veolia Energy North America, 482 Mass. 208, 121 N.E.3d 1221 (2019) 14

Niagara Fire Ins. Co. v. Lowell Trucking Corp., 316 Mass. 652, 56 N.E.2d 28 (1944) 24

Normandin v. Eastland Partner, Inc., 68 Mass. App. Ct. 377, 862 N.E.2d 402 (2007) 24

Nortek, Inc. v. Liberty Mut. Ins. Co., 65 Mass. App. Ct. 764, 843 N.E.2d 796 (2006) 23

Radecki v. Amoco Oil Co., 858 F.2d 397, 400 (8th Cir. 1988) 23

Taylor v. Beaudry, 75 Mass. App. Ct. 411, 914 N.E.2d 931 (2009) 19

Trace Const., Inc. v. Dana Barros Sports Complex, LLC, 459 Mass. 346, 945 N.E.2d 833 (2011) 14

Whittaker Chain Tread Co. v. Standard Auto Supply Co., 216 Mass. 204, 103 N.E. 695 (1913) 25

Statutes

G.L. c. 186, § 15B 18, 19, 20, 27, 40, 62, 64, 66, 74

G.L. c. 186, § 22 ..... 7, 8, 9, 10, 11, 15, 17, 18, 22, 24, 26, 27, 55

G.L. c. 239, § 8A 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17, 18, 19, 21, 22, 24, 25, 26, 27, 67, 74, 75

G.L. c. 239, § 9 ..... 9, 10, 73, 75, 76

I. STATEMENT OF THE ISSUES

Issue 1. A claim becomes moot when it is impossible for a court to grant any effectual relief whatever to the prevailing party. While the Landlord tendered damages to Ms. Charland for the underlying claim, this represented only partial relief. The statute governing eviction cases affords more than monetary relief; it also allows a tenant to retain possession of the unit. Did the Landlord's tender of damages moot Ms. Charland's defense to possession under §8A? Issue 2. Waiver is the intentional relinquishment of a known right. Ms. Charland in no way demonstrated intent to relinquish her claim or defense to possession under §8A when the Landlord tendered damages. Did Ms. Charland waive her claim or defense to possession under §8A?

II. STATEMENT OF THE CASE

A. Nature of the Appeal

Laural Charland ("Ms. Charland") appeals a Housing Court decision that awarded possession to the landlord, Cassandra Ferreira ("Landlord") in a no-fault eviction action. However, by statute, when a tenant prevails in her own claim against the landlord, she should be afforded the right to retain possession. Ms. Charland raised a meritorious defense to possession under G.L. c.239, §8A based on the Landlord's admitted violation of G.L. c. 186, §22, the statute governing

provision of water to residential tenants. Despite a clear violation of law triggering §8A, the Housing Court denied Ms. Charland's defense to possession and awarded possession to the Landlord. The Housing Court concluded - without any supporting facts in the record and without legal basis - that Ms. Charland waived her counterclaim under G.L. c.186, §22 and her §8A defense when the Landlord unilaterally tendered damages for the underlying violation of the water statute prior to trial. This appeal asserts that the Housing Court made an error of law in its application of §8A and in finding that Ms. Charland's counterclaim and §8A defense were waived or satisfied by the Landlord's unilateral payment of damages.

B. Procedural History

The Landlord filed this summary process 'no fault' action against Ms. Charland and the other two tenants on December 14, 2020 based on a 30-Day Notice to Quit. Record Appendix ("R.A.") at 4, 9-10. On March 2, 2021, Ms. Charland timely served and filed an Answer that raised, as a counterclaim, the Landlord's violation of the water statute, G.L. c.186, §22. R.A. at 5, 12-22. Under state law, such a counterclaim also operates as a defense to the Landlord's claim for possession of the unit.

On June 21, 2021, Judge Robert G. Fields of the Western Division of the Housing Court ("Housing Court") presided over a bench trial wherein Ms.

Charland, through counsel, agreed to the Landlord's prima facie case. R.A. at 33-34. The Landlord did not contest that she violated G. L. c.186, §22. R.A. at 34-39. Instead, she argued that because she tendered payment to cure the violation prior to trial, Ms. Charland's §8A defense was moot or waived. R.A. at 34-39. Ms. Charland agreed that the Landlord sent payment but contested that such tender was accepted or was a mutual agreement to settle her counterclaim and §8A defense. R.A. at 34-39. The Landlord offered no admissible evidence of any settlement, agreement, or even cancelled check to support its argument. R.A. at 34-42.

On June 25, 2021, the Housing Court issued a decision awarding possession to the Landlord, but staying entry of judgment through September 1, 2021 pursuant to G.L. c. 239, §9. R.A. at 26-28. The Court held the following: There is no question that the tenant asserted a claim that the landlord violated G.L. c.186, s.22 and there is no question that such claim triggers "violation of any other law" under G.L. c.239, s.8A. The question posed by this case is whether after the landlord tendered full compensation to the tenant for her claim under G.L. c.186, s.22 can she still assert said claim at trial to trigger the application of G.L. c.239, s.8A as a defense to possession. Given that the landlord tendered all the funds for the damages asserted under that claim and that they were knowingly accepted by the tenants without any reservation of rights, such tender and acceptance satisfied and

resolved the tenants' claim under G.L. c.186, s.22 and it can not be used to trigger a defense to possession under G.L. c.239, s.8A. R.A. at 26-27.

On August 20, 2021, Ms. Charland served and filed a motion to stay entry of judgment pursuant to G. L. c.239, §9. R.A. at 7. The Housing Court denied the motion after hearing on August 26, 2021. *Id.* On August 30, 2021, the Housing Court entered a judgment of possession in favor of the Landlord, beginning the 10-Day appeal period. *Id.*

Ms. Charland timely served and filed a Notice of Appeal. R.A. at 7, 29.

III. STATEMENT OF FACTS

Ms. Charland resides at 51 Ray Street, Ludlow, MA, in a single-family home she rented from the Landlord beginning in 2016. R.A. at 61-62. Ms. Charland moved into the house with her brother Jason Charland and her partner James Vazquez, also named tenants. R.A. at 62.

Following receipt of the 30-Day Notice to Quit and Summons and Complaint, Ms. Charland alleged a counterclaim under G. L. c.186, §22 as the basis for a defense to possession pursuant to G. L. c.239, §8A. R.A. at 18, 20. The Landlord never contested the violation of G. L. c.186, §22, even at trial. R.A. at 33-42.

Prior to trial, but after service of Ms. Charland's Answer, the Landlord mailed several checks to Ms. Charland and to her counsel's office to reimburse the Tenant for the illegal water charges and to pay damages. R.A. at 36-39. The record contained no evidence that the Landlord ever offered to settle Ms. Charland's attorney's fees. R.A. at 33-42.

At trial on June 21, 2021, Landlord's counsel Attorney Lawrence Farber argued that the sending of payment cured the G. L. c.186, §22 violation. R.A. at 37-

39. Ms. Charland's counsel conceded that the money was mailed to Ms. Charland, but argued that the claim was not settled or agreed upon and that §8A nonetheless dictates that possession be awarded to Ms. Charland, even if the Landlord no longer owed money. R.A. at 36-37, 39. Attorney Farber admitted that there was no meeting of the minds, only a unilateral tender of funds. R.A. at 41. The Housing Court had the following exchange with Attorney Farber: THE COURT: And was there any - - Attorney Farber, is the argument that there was meeting of the minds on - - I understand your argument completely, which is you've evaporated the claim by settling its value by proffering and tendering those funds; but my question to you is is there correspondence between the parties to indicate that there was a quid pro quo other than what you believe is inherent in this that - - that they would hold - - settled that claim, that - - in full settlement?

MR. FARBER: I don't think there was ever stated [sic] in that kind of straightforward language, your Honor. R.A. at 41. The Landlord offered no affirmative, admissible proof of any agreement or waiver. R.A. at 32-59. Furthermore, Ms. Charland testified – and the Landlord acknowledged – that Ms. Charland was up to date with use and occupancy payments. R.A. at 40, 62.

In its June 25, 2021 Decision, the Housing Court found waiver on the limited fact that the Landlord unilaterally sent payment and, therefore, denied Ms. Charland's underlying counterclaim and her defense to possession under §8A. R.A. at 26-27. On August 30, 2021, the Housing Court entered judgment for the Landlord. R.A. at 7. This appeal follows.

IV. SUMMARY OF ARGUMENT

This appellant brief argues that the Housing Court erred in failing to award possession to Ms. Charland pursuant to her defense under G.L. c.239, §8A. Ms. Charland was entitled to an award of possession because §8A requires that when a tenant prevails in a counterclaim, the tenant must be given the opportunity to retain possession of the unit (in other words, to not be physically evicted).

First, under the plain language of G.L. c.239, §8A, when a landlord files an eviction case and does not allege any tenant fault or breach of any obligation (referred to as a "no fault" eviction) a tenant can defend against that eviction by

raising and prevailing on a counterclaim. G.L. c.239, §8A, first par.; *Meikle v. Nurse*, 474 Mass. 207, 49 N.E.3d 210 (2016). While the statute also provides for a monetary accounting of competing claims between the parties, where the tenant has prevailed on at least one claim, this accounting operates a follows: if the landlord owes money to the tenant, or no money is owed to anyone, the tenant automatically gets possession. Where the tenant prevails on a claim, but still owes money to the landlord, the statute provides for a "cure" period. If the tenant pays the amount owed, the tenant retains possession.

Here, the Landlord did not dispute the underlying violation of law. R.A. at 33-

42. The Housing Court should have then held an accounting of money due between the parties. Ms. Charland would have achieved a zero balance or been owed money as she was up to date with her use and occupancy payments and the Landlord never paid attorney's fees on the underlying claim. R.A. at 40, 62.

Furthermore, a claim or case does not become moot or void unless there is no effectual relief the court can grant. Here, the Landlord tendered payment for damages on the underlying violation of law, i.e. the illegal water charges, but the Housing Court could still grant Ms. Charland possession under § 8A separate and apart from monetary damages.

Second, the Housing Court erred in concluding that Ms. Charland waived her counterclaim and her §8A defense when the Landlord tendered payment of damages for the underlying violation of law. There are no facts in the record to establish that Ms. Charland waived or relinquished her claim or defense. The Housing Court abused its discretion in finding waiver where no such evidence was offered or admitted into the record.

V. ARGUMENT

A de novo standard of review applies because this appeal presents issues of statutory construction. See *Meyer v. Veolia Energy North America*, 482 Mass. 208, 211, 121 N.E.3d 1221, 1226 (2019) (citing *Bridgewater State Univ. Fdn. v. Assessors of Bridgewater*, 463 Mass. 154, 156, 972 N.E.2d 1016 (2012)) (holding statutory construction issues constitute legal questions subject to de novo review); *Trace Const., Inc. v. Dana Barros Sports Complex, LLC*, 459 Mass. 346, 351, 945 N.E.2d 833, 837 (2011).

A. The Landlord's Tender of Money Did Not Moot Ms. Charland's Claim or Defense Because the Return of The Money Offered Only Partial Relief.

A case "becomes moot only when it is impossible for a court to grant any effectual relief whatever to the prevailing party." *Chafin v. Chafin*, 568 U.S. 165, 172, 133 S.Ct. 1017, 1023 (2013) (citing *Knox v. Service Employees*, 567 U.S. ——

–, ——, 132 S.Ct. 2277, 2287, 183 L.Ed.2d 281 (2012)) (internal quotation marks omitted). "As long as the parties have a concrete interest, however small, in the outcome of the litigation, the case is not moot." Chafin, 568 U.S. at 172, citing Knox, at 1019, 132 S.Ct., at 2287 (internal quotation marks and brackets omitted). *See also* Bais Yaakov of Spring Valley v. ACT Inc., 798 F.3d 46, 92 Fed.R.Serv.3d 453 (1st Cir. 2015).

Here, in the underlying eviction case, there were multiple forms of relief available to the parties. The two primary categories of relief potentially available to either party were (1) monetary damages, and attorneys fees, and (2) legal possession of the unit. The parties retained a "concrete interest" in winning possession of the apartment even after Landlord sent money to Ms. Charland. In a no fault eviction action, a tenant can raise any claim relating to the property—"by defense or counterclaim." G.L. c. 239, §8A para. 1. And a landlord cannot recover possession if the court finds tenant owes landlord an amount that "equals or is less than" the amount landlord owes tenant—"by reason of any counterclaim or defense." *Id.* at para. 5. Ms. Charland—by counterclaim and defense—charged Landlord with violating G.L. c.186, §22 by charging Ms. Charland for water. Thus, even if the Landlord's tender of money had resolved her counterclaim, Ms. Charland still would have won possession if the court determined she owed Landlord nothing—based on her §8A defense.

1. By Its Own Terms, §8A's Defense to Possession is Triggered By a Violation of Law, Not an Accounting of the Monies Due.

General Laws c.239, §8A allows a tenant to assert an affirmative defense in a no fault summary process eviction case by converting a broad array of a tenant's defenses and counterclaims into a device to retain possession. G. L. c.239, §8A, first par.; *Meikle v. Nurse*, 474 Mass. 207, 49 N.E.3d 210 (2016). The statute provides as follows: In any action under this chapter to recover possession of any premises rented or leased for dwelling purposes, brought pursuant to a notice to quit for nonpayment of rent, or where the tenancy has been terminated without fault of the tenant or occupant, the tenant or occupant shall be entitled to raise, by defense or counterclaim, any claim against the plaintiff relating to or arising out of such property, rental, tenancy, or occupancy for breach of warranty, for a breach of any material provision of the rental agreement, or for a violation of any other law.

G. L. c. 239, §8A, first par (emphasis added). Furthermore, the statute states: There shall be no recovery of possession under this chapter if the amount found by the court to be due the landlord equals or is less than the amount found to be due the tenant or occupant by reason of any counterclaim or defense under this section. If the amount found to be due the landlord exceeds the amount found to be due the tenant or occupant, there shall be no recovery of possession if the tenant or occupant, within one week after having received written notice from the court of

the balance due, pays to the clerk the balance due the landlord, together with interest and costs of suit, less any credit due the tenant or occupant for funds already paid by him to the clerk under this section. *Id.*, fifth par (emphasis added).

Under the plain meaning of G.L. c. 239, §8A, a tenant defeats the landlord's claim to possession merely by demonstrating a claim against or violation of law perpetrated by the landlord. The monetary accounting of competing claims between the two parties only has the effect of rebutting the defense to possession where the amount due the landlord exceeds that due the tenant and the tenant fails to pay the difference within a week. In other words, G.L. c. 239, §8A is a mechanism to defeat possession triggered simply by demonstrating an underlying claim or violation of law, with one very specific possibility of rebuttal.

Under G. L. c.239, §8A, and the standard articulated by the Appeals Court in *Meikle v. Nurse*, a violation of G. L. c.186, §22 – the water statute – clearly falls within the purview of §8A. 474 Mass. 207, 49 N.E.3d 210 (2016). General Laws c.186, §22 is a statute designed to protect a tenant's rights within the landlord-tenant relationship, and the allegation relates to and arises from Ms. Charland's tenancy.

Nothing in G. L. c.239, §8A, or case law interpreting its application, prevents a tenant from asserting §8A where the landlord has reimbursed the tenant prior to trial. Here, the consequence of the Landlord's tender of payment prior to

trial is that, in the final accounting of money due the Landlord versus money due Ms. Charland, a violation of G. L. c.186, §22 will yield a net zero or balance due Ms. Charland. Therefore, as §8A expressly provides, Ms. Charland shall retain possession. G. L. c.239, §8A, fifth par.

It is true the Housing Court has held that within the context of a violation of the security deposit statute a defense under §8A may become unavailable under certain circumstances. Specifically, upon a landlord's payment of statutory damages due under G. L. c.186, §15B, following a demand for return by the tenant, the tenant cannot successfully assert a defense under §8A. *Cruz v. Norat-Reyes*, 17-SP-181, March 1, 2017 (Housing Ct., Western Div.) (Fields, J.) (holding that return of the security deposit upon demand prevents the tenant from claiming a violation and damages under G. L. c.186, §15B, and therefore makes the defense and counterclaim ineligible to invoke G. L. c.239, §8A).

However, the security deposit statute is an exception because the statute itself expressly grants this "cure" opportunity. General Laws c.186, §15B(6) provides that a landlord "forfeits his right to retain any portion of the security deposit for any reason" where the landlord fails to comply with certain requirements of the same statute. But a tenant is not entitled to damages unless and until the landlord fails to comply with the forfeiture and return the deposit upon demand, as provided in §15B(7). *Castenholz v. Caira*, 21 Mass.App.Ct. 758, 490

N.E.2d 494 (1986) (holding that "subsection (7) imposes the treble damages" not for violation of the requirements in subsection (3), but for retaining the deposit after the landlord's forfeit thereof), citing *McGrath v. Mishara*, 386 Mass. 74, 85, 434 N.E.2d 1215 (1982); *Taylor v. Beaudry*, 75 Mass.App.Ct. 411, 914 N.E.2d 931 (2009) (tenant is entitled to treble damages only where landlord fails to return the forfeited deposit upon tenant's demand). This "cure" right or safe harbor provision does not exist outside the explicit language of the statute governing security deposits.

2. The Housing Court Retained the Ability to Award Possession Because §8A Provides Separate And Independent Relief, i.e. Possession.

The Appeals Court has held that tender of damages without express agreement and acceptance, does not moot a claim. Again, a case "becomes moot only when it is impossible for a court to grant any effectual relief whatever to the prevailing party. *Chafin v. Chafin*, 568 U.S. 165, 172, 133 S.Ct. 1017, 1023 (2013), supra. While not a summary process eviction case, in *Henry v. Bozzuto Management Co.*, the Appeals Court considered whether a landlord's tender of monetary damages on the tenants' claims rendered those monetary claims moot. 98 Mass.App.Ct. 690, 159 N.E.3d 701 (2020). "In light of the undisputed fact that the defendant violated G.L. c.186, §15B(4)(iii), and given the defendant's tender, we conclude that judgment should still have entered for the Henrys on count II in the

amount of the tender, $3,875, plus statutory interest." *Id.* at 701. The Appeals Court concluded that even if the tenants were made whole, leaving no dispute as to the tenants' claim under c.186, §15B, judgment should have entered for the tenants in the amount of all monies available under the claim. Henry, at 699, citing *BourgeoisWhite, LLP v. Sterling Lion, LLC*, 91 Mass.App.Ct. 114, 118-119, 71 N.E.3d 171 (2017). In short, even if the amount of damages has been resolved and accounted for, judgment on the legal claim still enters. Where an entry of judgment for a party results in further available relief – like the availability of possession in an eviction case – this distinction matters.

The Appeals Court based its conclusion in *Henry v. Bozzutto Management Co.* on several cases dealing with mootness. In *Gammella v. P.F. Chang's China Bistro, Inc.*, the Supreme Judicial Court held that a defendant's tender of damages, without acceptance by plaintiff, did not moot the plaintiff's claim. 482 Mass. 1, 19, 120 N.E.3d 690, 705 (2019), citing *Barron Chiropractic & Rehabilitation, P.C. v. Norfolk & Dedham Group*, 469 Mass. 800, 805, 17 N.E.3d 1056 (2014) ("Under common-law principles of contract . . . a plaintiff may reject a defendant's disputed tender of payment, made after the date for payment has expired, and litigate its breach of contract claim to completion."). In *Campbell-Ewald Co. v. Gomez*, the United States Supreme Court held the following: When a plaintiff rejects such an offer – however good the terms – her interest in the lawsuit remains just what it

was before. And so too does the court's ability to grant her relief. An unaccepted settlement offer – like any unaccepted contract offer – is a legal nullity, with no operative effect . . . [s]o assuming the case was live before – because plaintiff had a stake and the court could grant relief – the litigation carries on, unmooted. 577 U.S. 153, 162, 136 S.Ct. 663, 670 (2016), citing *Genesis Healthcare Corp. v. Symczyk*, 569 U.S. 66, 81, 133 S.Ct. 1523, 1533-34 (2013) (Kagan, dissenting).

Here, Ms. Charland's claim and defense were not rendered moot by the Landlord's tender of damages on the underlying claim. The Landlord tendered payment but, at most, that would have the effect under §8A of allowing an accounting of monies due each party. Ms. Charland did not accept the tender. But even if Ms. Charland concedes full satisfaction of the monetary damages to which she was entitled on the underlying claim, she retains an interest in further relief: possession pursuant to §8A. In addition, nothing in the record suggests that the Landlord's offer included payment of attorney's fees, and therefore, there was not complete monetary relief. R.A. at 33-42.

The Landlord never contested her violation of the water statute. R.A. at 32-35. However, the Housing Court stripped Ms. Charland's right to retain possession. Again, the statute provides: If the amount found to be due the landlord exceeds the amount found to be due the tenant or occupant, there shall be no recovery of possession if the tenant or occupant, within one week after having

received written notice from the court of the balance due, pays to the clerk the balance due the landlord, together with interest and costs of suit, less any credit due the tenant or occupant for funds already paid by him to the clerk under this section. *Id.*, fifth par (emphasis added). In short, this provision permits a tenant to retain possession of her home by paying an adjudged amount. Thus, even if the court had made a finding about how much the Landlord owed Ms. Charland (it did not), the court still would have erred by awarding possession to the Landlord.

Finally, while §8A provides tenants with a powerful tool, the Appeals Court astutely offered landlords some perspective in Meikle: "The statute does not impose an obligatory tenancy on the landlord. Nothing in the statute prevents the landlord from bringing a second summary process action for possession after he or she has remedied the violation of the security deposit statute." Meikle, at 214.

In sum, the Landlord's tender of money did not moot Ms. Charland's claim or defense because the court could still have granted relief by awarding Ms. Charland possession of the house pursuant to §8A.

B. Ms. Charland Did Not Release, Waive, or Otherwise Surrender Her Claim or Defense Because She Never Demonstrated Intent to Relinquish Her Right to Possession.

As described, the Housing Court held that the Landlord tendered "all the funds for the damages asserted" in Ms. Charland's §22 counterclaim, that Ms.

Charland "knowingly accepted" the payment, and that the parties' "tender and acceptance satisfied and resolved the tenants' claim under G.L. c.186, s.22 and it cannot be used to trigger a defense to possession under G.L. c.239, s.8A." This was error for multiple reasons.

1. Ms. Charland Did Not Release Her Claim or Defense Because the Parties Never Reached a "Meeting of The Minds."

An agreement requires "an objective manifestation of mutual assent, i.e. what is often referred to as 'meeting of the minds.' *Nortek, Inc. v. Liberty Mut. Ins. Co.*, 65 Mass.App.Ct. 764 (2006), quoting *Radecki v. Amoco Oil Co.*, 858 F.2d 397, 400 (8th Cir. 1988); *I & R Mechanical, Inc. v. Hazelton Mfg. Co.*, 62 Mass.App.Ct. 452 (2004).

The record contains no evidence indicating that the parties negotiated and agreed (i.e., reached a "meeting of the minds") about a "bargained-for exchange" of money in exchange for a release of any claims or defenses. In fact, the record contains an admission by the Landlord that there was no meeting of the minds as to settlement of Ms. Charland's claim or defense. The Housing Court could not possibly have concluded that the parties negotiated and agreed that Ms. Charland released all rights under her claims and defenses—including her right to retain possession.

2. Ms. Charland Did Not Waive Her Right to Possession Because Her Conduct Never Indicated an Intentional Relinquishment of That Right.

Waiver is "the 'intentional relinquishment of a known right.'" *BourgeoisWhite, LLP v. Sterling Lion, LLC*, 91 Mass.App.Ct. 114, 119 (2017), quoting *Mach. Works, Inc. v. Machine & Elec. Consultants, Inc.*, 444 Mass. 768, 771 (2005); *Normandin v. Eastland Partner, Inc.*, 68 Mass.App.Ct. 377, 388 (2007), quoting *Niagara Fire Ins. Co. v. Lowell Trucking Corp.*, 316 Mass. 652, 657 (1944). "Waiver may be express or 'inferred from a party's conduct and the surrounding circumstances.'" *Id.*

Here, Ms. Charland did not waive her counterclaim under G.L. c.186, §22 or her defense to possession under G.L. c.239, §8A. She did not expressly waive these rights in any writing or otherwise, nor did she take any action from which waiver of her rights could be inferred. Ms. Charland only acknowledged on the record that the Landlord tendered payment for damages of the underlying violation of G.L. c.186, §22.

Furthermore, the Landlord offered no written instrument or evidence of express or implied intent on the part of Ms. Charland to relinquish the claim or defense. See *Cormier v. Worcester Consol. St. Ry. Co.*, 234 Mass. 193 (1919) (claim satisfied where written agreement stated payment was made in full satisfaction); *Brown v. City of Cambridge*, 85 Mass. 474, 3 Allen 474 (1862)

(claim satisfied where a writing acknowledged payment and what the payment was for). Again, at trial the Landlord conceded through counsel that upon tender of payment, the parties came to no meeting of the minds regarding satisfaction or waiver. R.A. at 41. Through counsel, Ms. Charland maintained her position that the underlying violation of law entitled her to an award of possession under §8A and that mere tender of payment did not change that entitlement. R.A. at 34-39. Nowhere in the record from the June 21, 2021 trial was any affirmative and admissible evidence offered to support the Housing Court's conclusion that Ms. Charland waived any claim or defense. Therefore, the Housing Court abused it's discretion by forming a conclusion that Ms. Charland waived or relinquished her claim or defense.

3. Ms. Charland Did Not Otherwise Surrender Her Claim or Defense Because the Parties Never Entered an "Accord" That The Landlord Could Have "Satisfied" by Tendering Payment.

"The defense of accord and satisfaction is premised on the principle that '[i]f a creditor, having an unliquidated or disputed claim against his debtor, accepts a sum smaller than the amount claimed in satisfaction of the claim, he cannot afterwards maintain an action for the unpaid balance of his original claim.'" *Cuddy v. A & E Mechanical, Inc.*, 53 Mass.App.Ct. 901, 901 (2001). *See also Whittaker Chain Tread Co. v. Standard Auto Supply Co.*, 216 Mass. 204, 208 (1913).

Here, the record contains no evidence to suggest that the parties entered into the requisite accord that could be satisfied by payment afterward. R.A. at 32-43. The defense of accord and satisfaction does not apply to this case and, therefore, Ms. Charland did not surrender her claim under §22 or her defense under §8A.

VI. CONCLUSION

For the reasons stated in this brief, it should be apparent that the Tenant raised a meritorious defense to possession pursuant to §8A and the Landlord should not have been awarded a judgment of possession. Tenant Laural Charland requests that this Court reverse the entry of judgment for Landlord Cassandra Ferreira, and enter judgment for possession in favor of Laural Charland.

Respectfully Submitted,
Laural Charland,
By her counsel,

COMMUNITY LEGAL AID

Gabriel L. Fonseca, Esq. (BBO# 706870)

One Monarch Place, Ste. 400
Springfield, MA 01144
T: (413)686-9007 F: (413)746-3221
gfonseca@cla-ma.org
Dated: May 16, 2022

ADDENDUM

Addendum Table of Contents

Order After Trial, June 25, 2021

Docket from Case No. 20-SP-1676 (August 30, 2021 Entry of Judgment)

G.L. c.186, §15B

G.L. c. 186, §22

G.L. c.239, §8A

Cruz v. Norat-Reyes, 17-SP-181, March 1, 2017

Order After Trial, June 25, 2021

COMMONWEALTH OF MASSACHUSETTS

TRIAL COURT

Hampden, ss: HOUSING COURT DEPARTMENT

WESTERN DIVISION

CASE NO. 20-SP-1676

CASSANDRA FERREIRA,

Plaintiff,

v.

ORDER

LAURAL CHARLAND, JASON CHARLAND, and JAMES VASQUEZ,

Defendants.

This matter came before the court for hearing on June 22, 2021, at which the plaintiff landlord appeared with counsel and the defendant tenant Laural Charland appeared with counsel along with co-defendant Jason Charland who appeared prose. After said hearing, the following order shall enter:

1. Preliminary Matter: Water Charges under G.L. c.186, s.22: There is no question that the tenants asserted a claim that the landlord violated G.L. c.186, s.22. and there is also no question that such claim triggers "violation of any other law" under G. L. c. 239, s.8A. The question posed by this case is whether after the landlord tendered full compensation to the tenant for her claim under G.L. c.186, s.22 can she still assert said claim at trial to trigger the application of G.L c. 239, s.8A as a defense to possession. Given that the landlord tendered all the funds for the damages asserted under that claim and that they were knowingly accepted by the tenants without any reservation of rights, such tender and acceptance satisfied and resolved the tenants' claim under G.L. c.186, s.22 and it can not be used to trigger a defense to possession under G.L. c.239, s.8A.

2. G.L. c.239, s.9: The parties were also heard on the tenants' request that judgment be stayed in accordance with G.L. c.239, s.9. Pursuant to that statute, the court is directed to hear from all parties and achieve an order and an extension of time, if warranted, that is "just and reasonable". This is often a difficult task for a

court but the facts of this matter make it extremely difficult as both sides present very compelling needs and circumstances.

3. The tenants (Laural Charland and her brother Jason Charland) are both disabled and have limited income from Social Security benefits and food stamps. Ms. Charland testified credibly of her very extensive housing search in all towns around and between Ludlow and Agawam, other than avoiding inner-city locations.

4. The landlord also finds herself in dire straits, mostly residing on a couch in her parents' basement for a very protracted time and with no other options available to her until she can re-possess the subject premises for her own residence. Ms. Ferreira also reported to the court that she has a medical condition that will require her to have a procedure at the end of August, 2021 and will require a slow recovery thereafter—of course, a recovery hopefully not on her parents' couch.

5. Order: In accordance with G.L. c.239, s.9, judgment shall be stayed until September 1, 2021 and the tenants have until August 31, 2021 to vacate the premises and are required to pay use and occupancy through their vacating the unit.

So entered this 25th day of June, 2021.

Robert Fields, Associate Justice

Cc: Court Reporter

Docket from Case No. 20-SP-1676 (August 30, 2021 Entry of Judgment)

Case Details, Massachusetts Trial Court. 20H79SP001676 Ferreira, Cassandra vs. Charland, Laural et al.

Case Type: Housing Court Summary Process. Case Status: Active. File Date: 12/14/2020. DCM Track: Initiating Action: Efiled SP Summons and Complaint - No Cause. Status Date: 12/14/2020. Case Judge: Next Event: Property Address: 51 Ray Street, Ludlow MA 01056.

Party Attorney: Attorney Farber, Esq., Lawrence J. Bar Code 547966. Address: Farber and Lindley LLC, 30 Boltwood Walk Suite 101, Amherst, MA 01002. Phone Number (413)256-8429. Party Attorney: Attorney Fonseca, Esq., Gabriel. Bar Code 706870. Address: Community Legal Aid, 1 Monarch Place Suite 400, Springfield, MA 01144. Phone Number (413)686-9007. Party Attorney: Pro Se. Bar Code PROPER.

Party Information: Ferreira, Cassandra, Plaintiff. Charland, Laural, Defendant. Charland, Jason, Defendant. Party Attorney: Pro Se. Bar Code PROPER. Vasquez, James, Defendant.

Judgments (Date, Type, Method, For, Against): 08/30/2021 Final Judgment, Finding, Ferreira, Cassandra, Vasquez, James.

Events: 03/05/2021 09:00 AM, Session 3, DO NOT USE, Status Hearing, Continued. 03/17/2021 09:00 AM, Session 3, DO NOT USE, Housing Specialist

Mediation, Held. 05/11/2021 09:00 AM, Session 3, Western Housing Court, Pretrial Conference, Held. 06/01/2021 09:00 AM, Session 3, Western Housing Court, Jury Trial, Off the list. 06/02/2021 09:00 AM, Session 3, Western Housing Court, Jury Trial in Progress, Continued, Off the list. 06/17/2021 02:00 PM, Session 3, DO NOT USE, Housing Specialist Mediation, Held. 06/21/2021 10:00 AM, Session 3, DO NOT USE, Summary Process Trial, Held. 08/26/2021 11:00 AM, Session 3, DO NOT USE, Motion Hearing, Denied. 10/07/2021 09:00 AM, Session 3, DO NOT USE, Hearing, Rescheduled. 10/13/2021 09:00 AM, Session 3, DO NOT USE, Hearing, Held.

Docket Information:

12/14/2020 Summary Process: MGL Chapter 185C Section 19; Chapter 262 Section 2 Receipt: 120087 Date: 12/14/2020.

12/14/2020 SURCHARGE 185C: Entry of Action filed (Section 466 - M.G.L. c. 185C, §19) SURCHARGE Receipt: 120087 Date: 12/14/2020.

12/14/2020 Entry Package - Notice to Quit (Ref. 1).

12/14/2020 Entry Package - Affidavit of Compliance (Ref. 2).

12/14/2020 Affidavit Concerning CDC Order for Plaintiff (Ref. 3).

12/14/2020 Entry Package - SP Summons and Complaint - No Cause (Ref. 4).

01/04/2021 Entry Package - SP Summons and Complaint - Original (Ref. 5).

01/05/2021 Scheduled. Event: Status Hearing. Date: 03/05/2021 Time: 09:00 AM. Result: Continued.

01/05/2021 The following court event has been scheduled: 03/05/2021 09:00 AM Status Hearing. The event will be held via Video Conference and the virtual conference information is Mtg ID: 161 638 3742 Pwd: 1234 Tel# 646-828-7666.

01/05/2021 The following notice was sent and the supplemental civil information sheet was included. A Notice of Housing Specialist Status Conference was generated and sent to: Plaintiff, Attorney: Lawrence J Farber, Esq. Farber and Lindley LLC 30 Boltwood Walk Suite 101, Amherst, MA 01002. Defendant: Laural Charland 51 Ray Street, Ludlow, MA 01056. Defendant: Jason Charland 51 Ray Street, Ludlow, MA 01056. Defendant: James Vasquez 51 Ray Street, Ludlow, MA 01056.

03/02/2021 Answer and Counterclaim of Laural Charland filed. (Ref. 6).

03/02/2021 Defendant Discovery Requests, Interrogatories & Document Requests (Ref. 7).

03/02/2021 Answer and Counterclaim of James Vasquez filed. (Ref. 8).

03/02/2021 Defendant Discovery Requests, Interrogatories & Document Requests (Ref. 9).

03/02/2021 Jury claim of Laural Charland.

03/02/2021 Jury claim of James Vasquez.

03/05/2021 Alternative Dispute Resolution Outcome. Referral Date: 03/05/2021. Referral Source: Referral Event: Status Hearing Mar 5, 2021 9:00:00 AM. Referral Status: Did Not Enter Process. Referral Specialist: Roche, Michael.

03/05/2021 Event Resulted: Status Hearing scheduled on: 03/05/2021 09:00 AM. Has been: Continued. For the following reason: Both Parties Request. Unassigned, Presiding.

03/09/2021 Scheduled. Event: Housing Specialist Mediation. Date: 03/17/2021 Time: 09:00 AM. Result: Held.

03/09/2021 The following court event has been scheduled: 03/17/2021 09:00 AM Housing Specialist Mediation. The event will be held via video conference and the virtual conference information is: Mtg ID: 161 638 3742 Pwd: 1234 Tel# 646-828-7666.

03/09/2021 The following notice was sent and the supplemental civil information sheet was included. A Notice of Housing Specialist Status Conference was generated and sent to: Plaintiff, Attorney: Lawrence J Farber, Esq. Farber and Lindley LLC 30 Boltwood Walk Suite 101, Amherst, MA 01002. Defendant: Laural Charland 51 Ray Street, Ludlow, MA 01056. Defendant: Jason Charland 51 Ray Street, Ludlow, MA 01056. Defendant: James Vasquez 51 Ray Street, Ludlow, MA 01056.

03/17/2021 Alternative Dispute Resolution Outcome. Referral Date: 03/17/2021. Referral Source: Referral Event: Housing Specialist Mediation Mar 17, 2021 9:00:00 AM. Referral Status: Closed - Not Settled. Referral Specialist: Gonzalez, Mariann L.

03/17/2021 Event Resulted: Housing Specialist Mediation scheduled on: 03/17/2021 09:00 AM. Has been: Held. Hon. Robert G Fields, Presiding.

03/19/2021 Pretrial Order (Ref. 10). Judge: Cunha, Kara.

03/19/2021 Scheduled. Judge: Fields, Hon. Robert G. Event: Pretrial Conference. Date: 05/11/2021 Time: 09:00 AM. Result: Held.

03/19/2021 Scheduled. Event: Jury Trial. Date: 06/01/2021 Time: 09:00 AM. Result: Off the list.

05/05/2021 Pre-trial Memorandum filed. Cassandra Ferreira (Ref. 11).

05/05/2021 Plaintiff's First Motion in Limine (Ref. 12).

05/05/2021 Plaintiff's Second Motion in Limine (Ref. 13).

05/05/2021 Cassandra Ferreira's Voir Dire of prospective jurors filed (Ref. 14).

05/05/2021 Pretrial Submission of Cassandra Ferreira, Statement to Jury (Ref. 15).

05/10/2021 Notice of limited appearance for Laural Charland, by Gabriel Fonseca (Ref. 16).

05/11/2021 Attorney Appearance. On this date Gabriel Fonseca, Esq. added as Limited Assistance Representation for Defendant Laural Charland (Ref. 17).

05/11/2021 Event Resulted: Jury Trial scheduled on: 06/01/2021 09:00 AM. Has been: Off the list. For the following reason: Court Action. Hon. Robert G Fields, Presiding.

05/11/2021 Event Resulted: Jury Trial in Progress, Continued scheduled on: 06/02/2021 09:00 AM. Has been: Off the list. For the following reason: Court Action. Hon. Robert G Fields, Presiding.

05/11/2021 Scheduled. Judge: Fields, Hon. Robert G. Event: Summary Process Trial. Date: 06/21/2021 Time: 10:00 AM. Result: Held.

05/11/2021 Scheduled. Judge: Unassigned. Event: Housing Specialist Mediation. Date: 06/17/2021 Time: 02:00 PM. Result: Held.

05/11/2021 Order mailed. Judge: Fields, Hon. Robert G (Ref. 18).

05/11/2021 The following court event has been scheduled: 06/21/2021 10:00 AM Summary Process Trial. The event will be held via video conference and the conference information is Mtg ID: 161 638 3742 Pwd: 1234 Tel# 646-828-7666. Judge: Fields, Hon. Robert G.

05/11/2021 The following notice was sent and the supplemental civil information sheet was included. A Notice of Virtual Court Hearing was generated and sent to: Plaintiff, Attorney: Lawrence J Farber, Esq. Farber and Lindley LLC

30 Boltwood Walk Suite 101, Amherst, MA 01002. Defendant, Attorney: Gabriel Fonseca, Esq. Community Legal Aid 1 Monarch Place Suite 400, Springfield, MA 01144. Defendant: Jason Charland 51 Ray Street, Ludlow, MA 01056. Defendant: James Vasquez 51 Ray Street, Ludlow, MA 01056.

05/11/2021 The following court event has been scheduled: 06/17/2021 02:00 PM Housing Specialist Mediation. The event will be held via video conference and the conference information is Mtg ID: 161 638 3742 Pwd: 1234 Tel# 646-828-7666.

05/11/2021 The following notice was sent and the supplemental civil information sheet was included. A Notice of Virtual Court Hearing was generated and sent to: Plaintiff, Attorney: Lawrence J Farber, Esq. Farber and Lindley LLC 30 Boltwood Walk Suite 101, Amherst, MA 01002. Defendant, Attorney: Gabriel Fonseca, Esq. Community Legal Aid 1 Monarch Place Suite 400, Springfield, MA 01144. Defendant: Jason Charland 51 Ray Street, Ludlow, MA 01056. Defendant: James Vasquez 51 Ray Street, Ludlow, MA 01056.

05/11/2021 Jury Waiver filed. by deft Laural Charland (Ref. 19).

05/11/2021 Event Resulted: Pretrial Conference scheduled on: 05/11/2021 09:00 AM. Has been: Held. Hon. Robert G Fields, Presiding.

05/26/2021 Memorandum of Cassandra Ferreira on water & Sewer (Ref. 20).

05/28/2021 Proposed Exhibit Filed by Cassandra Ferreira (Ref. 21).

06/01/2021 Memorandum of Laural Charland (Ref. 22).

06/01/2021 Affidavit. Applies To: Charland, Laural (Defendant) (Ref. 23).

06/01/2021 Proposed Exhibit Filed by Laural Charland (Ref. 24).

06/17/2021 Event Resulted: Housing Specialist Mediation scheduled on: 06/17/2021 02:00 PM. Has been: Held. Comments: mediation failed- MKR. Unassigned, Presiding.

06/21/2021 Taken under advisement with RGF.

06/21/2021 Event Resulted: Summary Process Trial scheduled on: 06/21/2021 10:00 AM. Has been: Held. Hon. Robert G Fields, Presiding. Appeared: Plaintiff, Lawrence J Farber, Esq.; Defendant Laural Charland, Gabriel Fonseca, Esq., Limited Assistance Representation; Defendant Jason Charland.

06/25/2021 Order. Judge: Fields, Hon. Robert G (Ref. 25).

08/20/2021 Motion to stop physical eviction (Ref. 26).

08/24/2021 Scheduled. Judge: Doherty, Michael J. Event: Motion Hearing. Date: 08/26/2021 Time: 11:00 AM. Result: Denied.

08/24/2021 The following court event has been scheduled: 08/26/2021 11:00 AM Motion Hearing. The event will be held via video conference and the conference information is Mtg ID: 161 638 3742 Pwd: 1234 Tel# 646-828-7666.

08/26/2021 Event Resulted: Motion Hearing scheduled on: 08/26/2021 11:00 AM. Has been: Denied. For the following reason: Court Action. Hon. Robert G Fields, Presiding.

08/30/2021 Endorsement order: Motion denied and judgment to issue; execution in due course. Judge: Fields, Hon. Robert G (Ref. 27).

08/30/2021 Judgment issued: Final Judgment, Finding. Presiding: Hon. Robert G Fields. Judgment For: Cassandra Ferreira. Judgment Against: Laural Charland, Jason Charland, James Vasquez. Terms of Judgment: Jdgmnt Date: 08/30/2021 (Ref. 28).

09/10/2021 Notice of Appeal by Laural Charland from Judgment dated 08/30/2021 (Ref. 29).

09/10/2021 Defendant Motion to Set or Waive Appeal Bond (Ref. 30).

09/22/2021 Affidavit of Indigency FILED (Ref. 31).

09/23/2021 Certification that transcript was ordered - but exhibit not attached (Ref. 32).

10/06/2021 Scheduled. Event: Hearing. Date: 10/07/2021 Time: 09:00 AM. Result: Rescheduled.

10/06/2021 The following court event has been scheduled: 10/07/2021 09:00 AM Hearing. The event will be held via video conference and the conference

information is Mtg ID: 161 638 3742 Pwd: 1234 Tel# 646-828-7666. Hearing on motion to set or waive appeal bond.

10/06/2021 Notice of withdrawal of limited appearance by Gabriel Fonseca, Esq. for Laural Charland (Ref. 33).

10/07/2021 Notice of limited appearance for Laural Charland (Ref. 34).

10/07/2021 Affidavit (Ref. 35).

10/07/2021 Event Resulted: Hearing scheduled on: 10/07/2021 09:00 AM. Has been: Rescheduled. For the following reason: Court Action. Comments: to be heard by Judge Fields. Hon. Jeffrey M Winik, Presiding.

10/07/2021 Scheduled. Judge: Fields, Hon. Robert G. Event: Hearing. Date: 10/13/2021 Time: 09:00 AM. Result: Held.

10/07/2021 The following court event has been scheduled: 10/13/2021 09:00 AM Hearing. The event will be held via video conference and the conference information is Mtg ID: 161 638 3742 Pwd: 1234 Tel# 646-828-7666.

10/13/2021 Event Resulted: Hearing scheduled on: 10/13/2021 09:00 AM. Has been: Held. Hon. Robert G Fields, Presiding. Appeared: Plaintiff, Lawrence J Farber, Esq.; Defendant, Gabriel Fonseca, Esq., Limited Assistance Representation; Defendant Jason Charland; Defendant James Vasquez.

10/19/2021 Order re: appeal bond and waiver of costs. Judge: Fields, Hon. Robert G (Ref. 36).

03/16/2022 Order notifying parties about appeal issue. Judge: Fenn, Laura J. (Ref. 37).

03/16/2022 Proposed Exhibit Filed by Laural Charland to certification of transcript filed on September 23, 2021 (Ref. 38).

03/16/2022 Transcript of 6-21-21 hearing filed by Laural Charland (Ref. 39).

03/17/2022 Notice of Assembly of Record on Appeal sent to all counsel of record (Ref. 40).

03/17/2022 Transcript of hearing filed.

Case Disposition: Findings and Order, 06/25/2021.

G.L. c.186, §15B

§ 15B. Entrance of premises prior to termination of lease; payments; receipts; interest; records; security deposits.

Effective: March 16, 2005.

<Section impacted by 2020, 65, Secs. 3, 4 and 6 effective April 20, 2020 relating to lessor accessing rent received in advance for the last month of tenancy in order to address disruptions caused by the outbreak of COVID-19.>

(1) (a) No lease relating to residential real property shall contain a provision that a lessor may, except to inspect the premises, to make repairs thereto or to show

the same to a prospective tenant, purchaser, mortgagee or its agents, enter the premises before the termination date of such lease. A lessor may, however, enter such premises: (i) in accordance with a court order; (ii) if the premises appear to have been abandoned by the lessee; or (iii) to inspect, within the last thirty days of the tenancy or after either party has given notice to the other of intention to terminate the tenancy, the premises for the purpose of determining the amount of damage, if any, to the premises which would be cause for deduction from any security deposit held by the lessor pursuant to this section.

(b) At or prior to the commencement of any tenancy, no lessor may require a tenant or prospective tenant to pay any amount in excess of the following: (i) rent for the first full month of occupancy; and, (ii) rent for the last full month of occupancy calculated at the same rate as the first month; and, (iii) a security deposit equal to the first month's rent provided that such security deposit is deposited as required by subsection (3) and that the tenant is given the statement of condition as required by subsection (2); and, (iv) the purchase and installation cost for a key and lock.

(c) No lease or other rental agreement shall impose any interest or penalty for failure to pay rent until thirty days after such rent shall have been due.

(d) No lessor or successor in interest shall at any time subsequent to the commencement of a tenancy demand rent in advance in excess of the current

month's rent or a security deposit in excess of the amount allowed by this section. The payment in advance for occupancy pursuant to this section shall be binding upon all successors in interest.

(e) A security deposit shall continue to be the property of the tenant making such deposit, shall not be commingled with the assets of the lessor, and shall not be subject to the claims of any creditor of the lessor or of the lessor's successor in interest, including a foreclosing mortgagee or trustee in bankruptcy; provided, however, that the tenant shall be entitled to only such interest as is provided for in subsection (3)(b).

(2)(a) Any lessor or his agent who receives, at or prior to the commencement of a tenancy, rent in advance for the last month of the tenancy from a tenant or prospective tenant shall give to such tenant or prospective tenant at the time of such advance payment a receipt indicating the amount of such rent, the date on which it was received, its intended application as rent for the last month of the tenancy, the name of the person receiving it and, in the case of an agent, the name of the lessor for whom the rent is received, and a description of the rented or leased premises, and a statement indicating that the tenant is entitled to interest on said rent payment at the rate of five per cent per year or other such lesser amount of interest as has been received from the bank where the deposit has been held payable in accordance with the provisions of this clause, and a statement indicating

that the tenant should provide the lessor with a forwarding address at the termination of the tenancy indicating where such interest may be given or sent.

Any lessor or his agent who receives said rent in advance for the last month of tenancy shall, beginning with the first day of tenancy, pay interest at the rate of five per cent per year or other such lesser amount of interest as has been received from the bank where the deposit has been held. Such interest shall be paid over to the tenant each year as provided in this clause; provided, however, that in the event that the tenancy is terminated before the anniversary date of such tenancy, the tenant shall receive all accrued interest within thirty days of such termination. Interest shall not accrue for the last month for which rent was paid in advance. At the end of each year of tenancy, such lessor shall give or send to the tenant from whom rent in advance was collected a statement which shall indicate the amount payable by such lessor to the tenant. The lessor shall at the same time give or send to such tenant the interest which is due or shall notify the tenant that he may deduct the interest from the next rental payment of such tenant. If, after thirty days from the end of each year of the tenancy, the tenant has not received said interest due or said notice to deduct the interest from the next rental payment, the tenant may deduct from his next rent payment the interest due. If the lessor fails to pay any interest to which the tenant is then entitled within thirty days after the termination of the tenancy, the tenant upon proof of the same in an action against the lessor

shall be awarded damages in an amount equal to three times the amount of interest to which the tenant is entitled, together with court costs and reasonable attorneys fees.

(b) Any lessor or his agent who receives a security deposit from a tenant or prospective tenant shall give said tenant or prospective tenant at the time of receiving such security deposit a receipt indicating the amount of such security deposit, the name of the person receiving it and, in the case of an agent, the name of the lessor for whom such security deposit is received, the date on which it is received, and a description of the premises leased or rented. Said receipt shall be signed by the person receiving the security deposit.

(c) Any lessor of residential real property, or his agent, who accepts a security deposit from a tenant or prospective tenant shall, upon receipt of such security deposit, or within ten days after commencement of the tenancy, whichever is later, furnish to such tenant or prospective tenant a separate written statement of the present condition of the premises to be leased or rented. Such written statement shall also contain a comprehensive listing of any damage then existing in the premises, including, but not limited to, any violations of the state sanitary or state building codes certified by a local board of health or building official or adjudicated by a court and then existing in the premises. Such statement shall be signed by the lessor or his agent and contain the following notice in twelve-point

bold-face type at the top of the first page thereof: “This is a statement of the condition of the premises you have leased or rented. You should read it carefully in order to see if it is correct. If it is correct you must sign it. This will show that you agree that the list is correct and complete. If it is not correct, you must attach a separate signed list of any damage which you believe exists in the premises. This statement must be returned to the lessor or his agent within fifteen days after you receive this list or within fifteen days after you move in, whichever is later. If you do not return this list, within the specified time period, a court may later view your failure to return the list as your agreement that the list is complete and correct in any suit which you may bring to recover the security deposit.”

If the tenant submits to the lessor or his agent a separate list of damages, the lessor or his agent shall, within fifteen days of receiving said separate list, return a copy of said list to the tenant with either such lessor’s signed agreement with the content thereof or a clear statement of disagreement attached.

(d) Every lessor who accepts a security deposit shall maintain a record of all such security deposits received which contains the following information:–(i) a detailed description of any damage done to each of the dwelling units or premises for which a security deposit has been accepted, returned to any tenant thereof or for which the lessor has brought suit against any tenant; (ii) the date upon which the occupancy of the tenant or tenants charged with such damage was terminated; and

(iii) whether repairs were performed to remedy such damage, the dates of said repairs, the cost thereof, and receipts therefor. Said record shall also include copies of any receipt or statement of condition given to a tenant or prospective tenant as required by this section.

Said record shall be available for inspection upon request of a tenant or prospective tenant during normal business hours in the office of the lessor or his agent. Upon a wrongful failure by the lessor or his agent to make such record available for inspection by a tenant or prospective tenant, said tenant or prospective tenant shall be entitled to the immediate return of any amount paid in the form of a security deposit together with any interest which has accrued thereon.

The lessor or his agent shall maintain said record for each dwelling unit or premises for which a security deposit was accepted for a period of two years from the date of termination of the tenancy or occupancy upon which the security deposit was conditioned.

(3) (a) Any security deposit received by such lessor shall be held in a separate, interest-bearing account in a bank, located within the commonwealth under such terms as will place such deposit beyond the claim of creditors of the lessor, including a foreclosing mortgagee or trustee in bankruptcy, and as will provide for its transfer to a subsequent owner of said property. A receipt shall be given to the tenant within thirty days after such deposit is received by the lessor

which receipt shall indicate the name and location of the bank in which the security deposit has been deposited and the amount and account number of said deposit. Failure to comply with this paragraph shall entitle the tenant to immediate return of the security deposit.

(b) A lessor of residential real property who holds a security deposit pursuant to this section for a period of one year or longer from the commencement of the term of the tenancy shall, beginning with the first day of the tenancy, pay interest at the rate of five per cent per year, or other such lesser amount of interest as has been received from the bank where the deposit has been held payable to the tenant at the end of each year of the tenancy. Such interest shall be paid over to the tenant each year as provided in this clause, provided, however, that in the event that the tenancy is terminated before the anniversary date of the tenancy, the tenant shall receive all accrued interest within thirty days of such termination. Such interest shall be beyond the claims of such lessor, except as provided for in this section. At the end of each year of a tenancy, such lessor shall give or send to the tenant from whom a security deposit has been received a statement which shall indicate the name and address of the bank in which the security deposit has been placed, the amount of the deposit, the account number, and the amount of interest payable by such lessor to the tenant. The lessor shall at the same time give or send to each such tenant the interest which is due or shall include with the statement

required by this clause a notification that the tenant may deduct the interest from the tenant's next rental payment. If, after thirty days from the end of each year of the tenancy, the tenant has not received such notice or payment, the tenant may deduct from his next rent payment the interest due.

(4) The lessor shall, within thirty days after the termination of occupancy under a tenancy-at-will or the end of the tenancy as specified in a valid written lease agreement, return to the tenant the security deposit or any balance thereof; provided, however, that the lessor may deduct from such security deposit for the following: (i) any unpaid rent or water charges which have not been validly withheld or deducted pursuant to any general or special law; (ii) any unpaid increase in real estate taxes which the tenant is obligated to pay pursuant to a tax escalation clause which conforms to the requirements of section fifteen C; and (iii) a reasonable amount necessary to repair any damage caused to the dwelling unit by the tenant or any person under the tenant's control or on the premises with the tenant's consent, reasonable wear and tear excluded. In the case of such damage, the lessor shall provide to the tenant within such thirty days an itemized list of damages, sworn to by the lessor or his agent under pains and penalties of perjury, itemizing in precise detail the nature of the damage and of the repairs necessary to correct such damage, and written evidence, such as estimates, bills, invoices or receipts, indicating the actual or estimated cost thereof. No amount shall be

deducted from the security deposit for any damage to the dwelling unit which was listed in the separate written statement of the present condition of the premises which was required to be given to the tenant prior to the execution of the lease or creation of the tenancy pursuant to clause (c) of subsection (2) or any damages listed in any separate list submitted by the tenant and signed by the lessor or his agent pursuant to said clause (c), unless the lessor subsequently repaired or caused to be repaired said damage and can prove that the renewed damage was unrelated to the prior damage and was caused by the tenant or by any person under the tenant's control or on the premises with the tenant's consent. Nothing in this section shall limit the right of a landlord to recover from a tenant, who wilfully or maliciously destroys or damages the real or personal property of said landlord, to the forfeiture of a security deposit, when the cost of repairing or replacing such property exceeds the amount of such security deposit.

No deduction may be made from the security deposit for any purpose other than those set forth in this section.

(5) Whenever a lessor who receives a security deposit transfers his interest in the dwelling unit for which the security deposit is held, whether by sale, assignment, death, appointment of a receiver or trustee in bankruptcy, or otherwise, the lessor shall transfer such security deposit together with any interest which has accrued thereon for the benefit of the tenant who made such security deposit to his

successor in interest, and said successor in interest shall be liable for the retention and return of said security deposit in accordance with the provisions of this section from the date upon which said transfer is made; provided however, that the granting of a mortgage on such premises shall not be a transfer of interest. The successor in interest shall, within forty-five days from the date of said transfer, notify the tenant who made such security deposit that such security deposit was transferred to him and that he is holding said security deposit. Such notice shall also contain the lessor's name, business address, and business telephone number, and the name, business address, and business telephone number of his agent, if any. Said notice shall be in writing.

Upon such transfer, the lessor or his agent shall continue to be liable with respect to the provisions of this section until: (a) there has been a transfer of the amount of the security deposit so held to the lessor's successor in interest and the tenant has been notified in writing of the transfer and of the successor in interest's name, business address, and business telephone number; (b) there has been compliance with this clause by the successor in interest; or (c) the security deposit has been returned to the tenant.

In the event that the lessor fails to transfer said security deposit to his successor in interest as required by this subsection the successor in interest shall, without regard to the nature of the transfer, assume liability for payment of the

security deposit to the tenant in accordance with the provisions of this section; provided, however, that if the tenant still occupies the dwelling unit for which the security deposit was given, said successor in interest may satisfy such obligation by granting the tenant free use and occupancy of the dwelling unit for a period of time equivalent to that period of time for which the dwelling unit could be leased or occupied if the security deposit were deemed to be rent. The liability imposed by this paragraph shall not apply to a city or town which acquires title to property pursuant to chapter sixty or to a foreclosing mortgagee or a mortgagee in possession which is a financial institution chartered by the commonwealth or the United States. The term "rent", as used in the preceding sentence, shall mean the periodic sum paid by the tenant for the use and occupation of the dwelling unit in accordance with the terms of his lease or other rental agreement.

(6) The lessor shall forfeit his right to retain any portion of the security deposit for any reason, or, in any action by a tenant to recover a security deposit, to counterclaim for any damage to the premises if he: (a) fails to deposit such funds in an account as required by subsection (3); (b) fails to furnish to the tenant within thirty days after the termination of the occupancy the itemized list of damages, if any, in compliance with the provisions of this section; (c) uses in any lease signed by the tenant any provision which conflicts with any provision of this section and attempts to enforce such provision or attempts to obtain from the tenant or

prospective tenant a waiver of any provision of this section; (d) fails to transfer such security deposit to his successor in interest or to otherwise comply with the provisions of subsection (5) after he has succeeded to an interest in residential real property; or, (e) fails to return to the tenant the security deposit or balance thereof to which the tenant is entitled after deducting therefrom any sums in accordance with the provisions of this section, together with any interest thereon, within thirty days after termination of the tenancy.

(7) If the lessor or his agent fails to comply with clauses (a), (d), or (e) of subsection 6, the tenant shall be awarded damages in an amount equal to three times the amount of such security deposit or balance thereof to which the tenant is entitled plus interest at the rate of five per cent from the date when such payment became due, together with court costs and reasonable attorney's fees.

(7A) Whenever a lessor who receives rent in advance for the last month of tenancy transfers his interest in the dwelling unit for which the rental advance was received, whether by sale, assignment, death, appointment of a receiver or trustee in bankruptcy, or otherwise, the lessor shall credit an amount equal to such rental advance together with any interest which has accrued thereon for the benefit of the tenant who made such rental advance, to the successor in interest of such lessor, and said successor in interest shall be liable for crediting the tenant with such rental advance, and for paying all interest accrued thereon in accordance with the

provisions of this section from the date upon which said transfer is made; provided, however, that the granting of a mortgage on such premises shall not be deemed a transfer of interest. The successor in interest shall, within forty-five days from the date of said transfer, notify the tenant who made such rental advance that such rental advance was so credited, and that such successor has assumed responsibility therefor pursuant to the foregoing provision. Such notice shall also contain the lessor's name, business address, and business telephone number, and the name, business address, and business telephone number of his agent, if any. Said notice shall be in writing.

Upon such transfer, the lessor or his agent shall continue to be liable with respect to the provisions of this section until: (a) there has been a credit of the amount of the rental advance so held to the lessor's successor in interest and the tenant has been notified in writing of the transfer and of the successor in interest's name, business address, and business telephone number; (b) there has been compliance with this clause by the successor in interest; or (c) the rental advance has been credited to the tenant and all accrued interest has been paid thereon.

In the event that the lessor fails to credit said rental advance to his successor in interest as required by this subsection, the successor in interest shall, without regard to the nature of the transfer, assume liability for crediting of the rental advance, and payment of all interest thereon to the tenant in accordance with the

provisions of this section; provided, however, that if the tenant still occupies the dwelling unit for which the rental advance was given, said successor in interest may satisfy such obligation by granting the tenant free use and occupancy of the dwelling unit for a period of time equivalent to the period of time covered by the rental advance. The liability imposed by this subsection shall not apply to a city or town which acquires title to property pursuant to chapter sixty or to a foreclosing mortgagee or a mortgagee in possession which is a financial institution chartered by the commonwealth or by the United States.

(8) Any provision of a lease which conflicts with any provision of this section and any waiver by a tenant or prospective tenant of any provision of this section shall be deemed to be against public policy and therefore void and unenforceable.

(9) The provisions of this section shall not apply to any lease, rental, occupancy or tenancy of one hundred days or less in duration which lease or rental is for a vacation or recreational purpose.

Credits: Added by St.1969, c. 244, § 1. Amended by St.1970, c. 666, § 1; St.1972, c. 639, § 1; St.1973, c. 430, § 11; St.1975, c. 154; St.1977, c. 979, § 1; St.1978, c. 553, § 2; St.1981, c. 82; St.1983, c. 645, §§ 1, 2; St.1984, c. 170, §§ 2 to 3; St.1984, c. 474; St.1986, c. 557, § 164; St.1992, c. 133, § 522; St.2004, c. 417, § 1, eff. Mar. 16, 2005.

G.L. c. 186, §22

§ 22. Definitions; submeter installation; testing; water use charges; public housing development exemption.

Effective: March 16, 2005.

<Section impacted by 2020, 65, Secs. 3 and 6 effective April 20, 2020 relating to suspension of evictions in order to address disruptions caused by the outbreak of COVID-19.>

(a) For the purposes of this section the following words shall have the following meanings:–

“Common area”, any portion of a building with more than 1 dwelling unit that is not incorporated within a dwelling unit.

“Customer service charge”, a fixed amount charged by a city or town or water company for providing water to a building.

“Dwelling unit”, any house or building, or portion thereof, that is occupied, designed to be occupied, or is rented, leased or hired out to be occupied, as a home or residence of one or more persons.

“Landlord”, the owner, lessor or sublessor of a dwelling unit, the building of which it is a part, or the premises wherein a customer receives water service through metered measurement.

"Submetering", use of a meter by a landlord who receives water from a water company, which meter measures water supplied to a dwelling unit to enable the landlord to charge the tenant of the dwelling unit separately for water usage, or which meter measures water supplied to a common area.

"Water company", a company, as defined in section 1 of chapter 165 or a municipal utility or any other waterworks system owned, leased, maintained, operated, managed or controlled by any unit of local government under any general or special law, which company, utility or system supplies water to a landlord through metered measurement. Any landlord imposing charges on tenants or otherwise engaging in any activity permitted under this section shall not be deemed thereby to be functioning as a water company as defined herein or to be subject to any laws or regulations regulating any such company.

"Water conservation device", for all showers, shower stalls, shower compartments or shower baths, a low-flow showerhead which shall have a maximum flow rate not exceeding 2 ½ gallons of water per minute, for all faucets a maximum flow rate not exceeding 2 and 2/10 gallons of water per minute and for all water closets, ultra-low-flush water closets not exceeding 1 and 6/10 gallons of water per flush, contained within a dwelling unit.

(b) A landlord may cause to be installed by a plumber licensed in the commonwealth, at the expense of such landlord, submetering equipment in the

landlord's building to measure the quantity of water provided for the exclusive use of each dwelling unit, provided that such equipment meets the standards of accuracy and testing of the American Water Works Association or a similar accredited association; and provided further, that a submeter is installed for each dwelling unit in the building and for the common areas of the building, so that all water used in a building is measured by both a primary meter and a submeter.

(c) A landlord may charge a tenant of a dwelling unit for water usage as measured through the use of submetering equipment only in accordance with this section and only upon the landlord certifying that the dwelling unit is in compliance with this section to a board of health, health department or other municipal agency or department charged with enforcement of the state sanitary code. All provisions of this section allowing landlords to charge tenants for water usage shall also be deemed to apply to sewer service charges calculated by means of the same primary meter or submeter. Certification by the landlord shall be provided under the penalties of perjury and shall include a statement that: 1) the dwelling unit is eligible for the imposition on the tenant of a charge for water usage in accordance with paragraph (d); 2) all showerheads, faucets, and water closets in the dwelling unit are water conservation devices and that all water closets were installed by a licensed plumber; and 3) the water submeter measuring the use of

water in the dwelling unit was installed by a licensed plumber and is in compliance with the standards of accuracy and testing referenced in subsection (b).

(d) A dwelling unit shall become eligible for the imposition on the tenant of a charge for water usage only upon the commencement of a new tenancy in such dwelling unit and only if: (1) the dwelling unit is being occupied for the first time; or (2) the previous tenant vacated the dwelling unit voluntarily, or was evicted from the dwelling unit for nonpayment of rent or for breach of lease or noncompliance with a rental agreement for the dwelling unit; provided, however, that a dwelling unit shall not be deemed eligible for submetering if the new tenant relocated involuntarily from another dwelling unit in the same building or building complex; and provided further, that once a tenant of a dwelling unit has been charged for the use of water in accordance with this section, such dwelling unit shall remain eligible for the imposition of a charge for the use of water in all subsequent tenancies; and provided further, that a licensed plumber employed by or under contract with the landlord may perform any work in a dwelling unit as is required by this section to allow for the imposition on a tenant of a charge for the use of water, even if such unit is occupied by a tenant upon whom a charge for the use of water cannot be imposed.

(e) A landlord may not charge the tenant of a dwelling unit separately for water usage measured by a submeter, nor allow such tenant to be so charged,

unless the submeter measures only water that is supplied for the exclusive use of the particular dwelling unit and only to an area within the exclusive possession and control of the tenant of such dwelling unit and does not measure any water usage for any portion of the common areas or by any other party or dwelling unit; provided further, that a landlord shall not charge such tenant for water supplied through a submeter to the dwelling unit prior to the landlord installing fully functional water conservation devices for all faucets, showerheads and water closets in the dwelling unit; and provided further, that the landlord shall ensure that such water conservation devices are installed and functioning properly at the commencement of each subsequent tenancy in such dwelling unit.

(f) A landlord may not charge the tenant separately, nor allow tenant to be charged separately, for submetered water usage unless the tenant has signed a written rental agreement that clearly and conspicuously provides for such separate charge and that fully discloses in plain language the details of the water submetering and billing arrangement between the landlord and the tenant. Each bill for submetered water usage shall clearly set forth all charges and all other relevant information, including, but not limited to, the current and immediately preceding submeter readings and the date of each such reading, the amount of water consumed since the last reading, the charge per unit of water, the total charge and the payment due date. Such charges shall be billed to the tenant in at leased as

many periods as the landlord is billed by the water company providing such water to the building or such payments may be made on a monthly payment schedule as agreed to in the written rental agreement; provided, however, that if the landlord bills the tenant on a monthly basis, payment of the bill by the tenant shall be due 15 days after the date the bill is mailed to the tenant, but if the landlord bills the tenant at intervals greater than 1 month, payment of the bill by the tenant shall be due 30 days after the date the bill is mailed to the tenant. If the tenant fails to make such payment, such nonpayment shall be a material breach of the written rental agreement. Violation of such breach may be cured by payment of the water charges in full prior to any court hearing to adjudicate such violation.

(g) A landlord shall determine a calculated cost per unit of water consumption by dividing the total amount of any bill or invoice provided to the landlord from the water company for water usage, the customer service charge and taxes, but not including any interest for the late payment, penalty fees or other discretionary assessments or charges, for all water provided to the premises through the water company meter in that billing period, by the total amount of water consumption for the entire premises. The total amount charged separately to each submetered dwelling unit for water usage for any billing period shall not exceed such calculated cost per unit of water multiplied by the number of units of water delivered exclusively to the particular dwelling unit for the same billing

period, provided that the landlord has verified that the total amounts of water usage measured by all submeters in the building, including all submeters for common areas, does not exceed the total amount of water usage in the building for the same billing period as shown on such bill or invoice.

(h) Whenever a tenancy in a dwelling unit commences after the beginning, but before the end, of a billing period for which the landlord has not been billed by the water company, the landlord shall mail to the tenant on the first day of such tenancy the reading on the submeter for the dwelling unit as of that day. The landlord may thereafter bill the tenant only for the water measured on the submeter subsequent to such reading.

(i) Whenever a tenancy in a dwelling unit terminates after the beginning, but before the end, of a billing period for which the landlord has not been billed by the water company, the landlord shall give to the tenant on the last day of such tenancy the reading on the submeter for the dwelling unit as of that day together with a final bill for water usage in the dwelling unit since the last prior reading of the submeter for such dwelling unit. The landlord shall charge the same rate for the water used by the tenant as the water company charged in the last bill issued to the landlord. Notwithstanding paragraph (f), the bill shall be immediately due and payable by the tenant. If the tenant does not pay the bill, the landlord may deduct the amount of the bill from any security deposit paid by the tenant in accordance

with section 15B of chapter 186, prior to returning the balance of the security deposit, if any, to the tenant. If the landlord is not able to give the final reading on the submeter for the dwelling unit together with a final bill for water usage to the tenant on the last day of the tenancy, the landlord shall mail such reading and such final bill to the tenant no later than the day after the termination of the tenancy. If the water company subsequently charges the landlord a lesser rate than the landlord charged the tenant in the final bill, the landlord shall recalculate the bill forthwith based on the lesser rate and mail to the tenant the revised bill together with a rebate for any overpayment made by the tenant.

(j) A landlord shall not charge or recover, or allow to be charged or recovered, any additional servicing, administrative, establishment, meter-reading, meter-testing, billing, or submetering fee or other fee whatsoever, however denominated.

(k) Water usage separately charged to tenants pursuant to this section shall be delivered by the water company to the landlord and such landlord shall:– (1) be the consumer; (2) for billing purposes, be the customer of record; (3) be responsible for payment of the water company bills; and (4) be subject to any actions of the water company for nonpayment.

(l) In the event of nonpayment of a bill to a water company by the landlord, such water company shall have all the remedies against the customer of the water

company available pursuant to any law, rule or regulation. A landlord may not shut off or refuse water service to a tenant on the basis that the tenant has not paid a separately assessed submetered water usage charge.

(m) The landlord shall retain an affirmative obligation to maintain in good working order the water supply system to each dwelling unit and any component thereof, including any water conservation device and submeter installed pursuant to this section, and to respond in a timely manner to any request by the tenant for the repair of any defect or malfunctioning in such water supply system, including any leak. Such water supply system to any dwelling unit and any component thereof including, but not limited to, any water conservation device and submeter installed pursuant to this section, shall be governed by and maintained in accordance with the state sanitary code. In the event of any overcharge by the landlord or any violation of the state sanitary code, the tenant shall have all rights and remedies provided under law for such overcharges or such violations including, but not limited to, the rights and remedies provided under chapters 111, 186 and 239.

(n) Upon receipt of a bill for water usage from the landlord and within the time allowed for paying the bill, a tenant may request that a person or entity with expertise in the installation and operation of water submeters and with no financial or other relationship with the landlord, test the submeter for the dwelling unit

leased by the tenant to determine whether it is accurately measuring the water being used in the dwelling unit. If the submeter is found to be measuring more water than is being used in the dwelling unit, the landlord shall install a new submeter at his own expense and shall also pay for the cost of the test. In addition, the person or entity conducting the test shall determine as accurately as possible the amount of water that was improperly measured by the submeter in both the prior and current billing periods. The landlord shall calculate the amount the tenant was overcharged for the prior billing period and reduce the bill by that amount, or, if the tenant has already paid the bill, give the tenant a rebate in that amount. Upon receipt from the water company of the bill for the current billing period, the landlord shall calculate the amount of the bill attributable to the excessive measurement by the submeter and reduce the bill to the tenant by that amount prior to sending it to the tenant. If the submeter is found to be measuring no more water than is being used in the dwelling unit, the tenant shall pay for the cost of the test; provided, however, that if the tenant does not pay for the cost of the test, the landlord may add such cost to the next bill sent to the tenant and such cost shall be considered a part of the bill for purposes of paragraph (f) and clause (i) of subsection (4) of section 15B of chapter 186.

(o) In the event of a repair of a leak in the water supply system to a dwelling unit, the landlord shall determine as accurately as possible the amount of water that

was measured on the submeter for the dwelling unit as a result of such leak, after a review of the billing records for the dwelling unit and consultation with the licensed plumber repairing the leak. The landlord shall then determine the amount of the bill for the billing period in which the leak occurred that was attributable to such leak and reduce the bill to the tenant by that amount or, if such bill has already been paid, grant the tenant a rebate in that amount; provided, however, that with regard to any leak about which the tenant knew or should have known, the landlord shall only be required to reduce the bill to the tenant, or to grant a rebate to the tenant, by or in an amount attributable to the water usage measured on the submeter as a result of the leak between the date the tenant gave notice to the landlord of the leak and the date the leak was repaired.

(p) A landlord may impose a charge for water use on the tenant of a dwelling unit that is connected directly to a meter installed by a water company; provided that the meter measures only water that is supplied for the exclusive use of the dwelling unit and only to an area within the exclusive possession and control of the tenant of such dwelling unit and does not measure water usage for any portion of any common area or by any other party or dwelling unit. The landlord and tenant shall have all of the same rights and obligations with respect to water charges for such dwelling unit that landlords and tenants have under this section with respect to water charges for any dwelling unit connected to a submeter; provided,

however, that the landlord shall not be required to include in the certificate required by subsection (c) the information required by clause (3) of said subsection (c) for dwelling units connected to a submeter; and provided further, that subsection (n) shall not apply to dwelling units connected directly to a meter installed by a water company. Upon a request by the tenant of a dwelling unit connected directly to a meter installed by a water company, the landlord shall apply for a test of the meter to determine its accuracy in accordance with section 10 of chapter 165. The test shall be conducted in accordance with said section 10. The tenant shall reimburse the landlord for any cost incurred in connection with such test. If the tenant does not reimburse the landlord for such cost, the landlord may add such cost to the next bill sent to the tenant and such cost shall be considered to be part of the bill for purposes of subsection (f) and clause (i) of subsection (4) of section 15B of chapter 186.

(q) Nothing in this section shall be construed to increase or expand, change, eliminate, reduce or otherwise limit the liabilities or obligations of any water company that are set forth in any law, rule, regulation or order to the tenant of a dwelling unit who is receiving water provided to the building by the water company.

(r) Nothing in this section shall affect or impair the powers and duties of the department of environmental protection or the department of public health with respect to water supply under chapter 111.

(s) No charge for water usage may be imposed on the tenant of any dwelling unit in a public housing development pursuant to chapter 200 of the acts of 1948, chapter 667 of the acts of 1954, chapter 705 of the acts of 1966, or chapter 689 of the acts of 1974.

(t) The department of public health shall promulgate such additional regulations to the state sanitary code as it determines to be necessary to implement this section.

Credits: Added by St.2004, c. 417, § 2, eff. Mar. 16, 2005.

G.L. c.239, §8A

§ 8A. Rent withholding; grounds; amount claimed; presumptions and burden of proof; procedures.

<Section impacted by 2020, 65, Secs. 3 and 6 effective April 20, 2020 and 2020, 257, Sec. 1, as amended by 2021, 20, Secs. 12 to 15, 29 and 30 and 2022, 42, Sec. 30 effective December 31, 2020 relating to eviction protections in order to address disruptions caused by the outbreak of COVID-19.>

In any action under this chapter to recover possession of any premises rented or leased for dwelling purposes, brought pursuant to a notice to quit for nonpayment of rent, or where the tenancy has been terminated without fault of the tenant or occupant, the tenant or occupant shall be entitled to raise, by defense or counterclaim, any claim against the plaintiff relating to or arising out of such property, rental, tenancy, or occupancy for breach of warranty, for a breach of any material provision of the rental agreement, or for a violation of any other law. The amounts which the tenant or occupant may claim hereunder shall include, but shall not be limited to, the difference between the agreed upon rent and the fair value of the use and occupation of the premises, and any amounts reasonably spent by the tenant or occupant pursuant to section one hundred and twenty-seven L of chapter one hundred and eleven and such other damages as may be authorized by any law having as its objective the regulation of residential premises.

Whenever any counterclaim or claim of defense under this section is based on any allegation concerning the condition of the premises or the services or equipment provided therein, the tenant or occupant shall not be entitled to relief under this section unless: (1) the owner or his agents, servants, or employees, or the person to whom the tenant or occupant customarily paid his rent knew of such conditions before the tenant or occupant was in arrears in his rent; (2) the plaintiff does not show that such conditions were caused by the tenant or occupant or any

other person acting under his control; except that the defendant shall have the burden of proving that any violation appearing solely within that portion of the premises under his control and not by its nature reasonably attributable to any action or failure to act of the plaintiff was not so caused; (3) the premises are not situated in a hotel or motel, nor in a lodging house or rooming house wherein the occupant has maintained such occupancy for less than three consecutive months; and (4) the plaintiff does not show that the conditions complained of cannot be remedied without the premises being vacated; provided, however, that nothing in this clause shall be construed to deprive the tenant or occupant of relief under this section when the premises are temporarily vacated for purposes of removal or covering of paint, plaster, soil or other accessible materials containing dangerous levels of lead pursuant to section one hundred and ninety-seven of chapter one hundred and eleven.

Proof that the premises are in violation of the standard of fitness for human habitation established under the state sanitary code, the state building code, or any other ordinance, by-law, rule or regulation establishing such standards and that such conditions may endanger or materially impair the health, safety or well-being of a person occupying the premises shall create a presumption that conditions existed in the premises entitling the tenant or occupant to a counterclaim or defense under this section. Proof of written notice to the owner or his agents, servants, or

employees, or to the person to whom the tenant or occupant customarily paid his rent, of an inspection of the premises, issued by the board of health, or in the city of Boston by the commissioner of housing inspection, or by any other agency having like powers of inspection relative to the condition of residential premises, shall create a presumption that on the date such notice was received, such person knew of the conditions revealed by such inspection and mentioned in such notice. A copy of an inspection report issued by any such agency, certified under the penalties of perjury by the official who inspected the premises, shall be admissible in evidence and shall be prima facie evidence of the facts stated therein.

There shall be no recovery of possession pursuant to this chapter pending final disposition of the plaintiff's action if the court finds that the requirements of the second paragraph have been met. The court after hearing the case may require the tenant or occupant claiming under this section to pay to the clerk of the court the fair value of the use and occupation of the premises less the amount awarded the tenant or occupant for any claim under this section, or to make a deposit with the clerk of such amount or such installments thereof from time to time as the court may direct, for the occupation of the premises. In determining said fair value, the court shall consider any evidence relative to the effect of any conditions claimed upon the use and occupation of residential premises. Such funds may be expended for the repair of the premises by such persons as the court after a hearing may

direct, including if appropriate a receiver appointed as provided in section one hundred and twenty-seven H of chapter one hundred and eleven. When all of the conditions found by the court have been corrected, the court shall direct that the balance of funds, if any, remaining with the clerk be paid to the landlord. Any tenant or occupant intending to invoke the provisions of this section may, after commencement of an action under this chapter by the landlord, voluntarily deposit with the clerk any amount for rent or for use and occupation which may be in dispute, and such payments shall be held by the clerk subject to the provisions of this paragraph.

There shall be no recovery of possession under this chapter if the amount found by the court to be due the landlord equals or is less than the amount found to be due the tenant or occupant by reason of any counterclaim or defense under this section. If the amount found to be due the landlord exceeds the amount found to be due the tenant or occupant, there shall be no recovery of possession if the tenant or occupant, within one week after having received written notice from the court of the balance due, pays to the clerk the balance due the landlord, together with interest and costs of suit, less any credit due the tenant or occupant for funds already paid by him to the clerk under this section. In such event, no judgment shall enter until after the expiration of the time for such payment and the tenant has

failed to make such payment. Any such payment received by the clerk shall be held by him subject to the provisions of the preceding paragraph.

Any provision of any rental agreement purporting to waive the provisions of this section shall be deemed to be against public policy and void. The provisions of section two A and of section eighteen of chapter one hundred and eighty-six shall apply to any tenant or occupant who invokes the provisions of this section.

Credits: Added by St.1965, c. 888. Amended by St.1967, c. 420, § 1; St.1969, c. 355; St.1973, c. 471; St.1973, c. 1007, § 3; St.1974, c. 269, §§ 1, 2; St.1975, c. 467, § 3; St.1977, c. 963; St.1979, c. 198, §§ 1, 2; St.1981, c. 133; St.1987, c. 773, § 15.

***Cruz v. Norat-Reyes*, 17-SP-181, March 1, 2017**

Docket No.: 17-SP-181. Parties: PEDRO CRUZ, Plaintiff, v. VILMARY NORAT-REYES and SALVADOR MORENO, Defendants. Judge: /s/Robert Fields, Associate Justice. Date: March 1, 2017. Western Division.

ORDER

This matter came before the court for trial on February 2, 2017, at which the plaintiff was represented by counsel and the defendants appeared pro se. After consideration of the evidence admitted at trial and of the legal memorandum

submitted by the plaintiff thereafter, the following findings of fact, rulings of law, and order for judgment shall enter:

1. Background: The plaintiff, Pedro Cruz (hereinafter, "landlord") owns a two-family house in which he rents the second floor unit of 92 Grover Street, Springfield, Massachusetts (hereinafter, "premises") to the defendants, Vilmary Norat-Reyes and Salvador Moreno (hereinafter, "tenants"). The monthly rent is $525 and the tenancy began on May 1, 2015. The tenancy was terminated "without fault" of the tenants and the tenants filed an Answer with defenses and counterclaims alleging violation of the security deposit and last month's rent laws as well as seeking additional time to move from the premises pursuant to G.L. c.239, §9.

2. The Landlord's Claim for Possession and for Outstanding Use and Occupancy: The parties stipulated to the prima facie elements of the landlord's claim for possession, agreeing to receipt of the no-fault notice to quit and also that the amount of unpaid rent, use, and occupancy through the month of trial is $1,050. What remains for the court's adjudication are the tenants' defenses and counterclaims.

3. Security Deposit and Last Month's Rent Claims: After receipt of the tenants' Answer, in which they claimed violations of the Security Deposit and Last Month's Rent laws, the landlord immediately provided checks to the tenants for the

return of the security deposit plus interest and for the interest due on the last month's rent deposit. The landlord has stipulated that he violated the statute (G.L. c.186, §15B) but argues that because he returned the security deposit along with interest on both the security deposit and last month's rent, those claims are no longer before the court.

4. Discussion: The initial question before the court is whether the recent payments (noted above) made by the landlord to the tenants, and the manner in which they were made, makes the tenants whole on their asserted claims. First, treating the Answer as the first demand for the return of the security deposit and for the interest on the last month's rent, the immediate return of such funds to the tenants avoids the trebling possibilities of the statute. See, Caira v Castenholtz, 21 Mass.App.Ct. 758 (1986). Specifically, the landlord reported to the court that it paid $577.50 for the return of the security deposit and interest and $52.50 for the interest on the last month's rent. The tenants did not make argument that said sums were deficient in any manner, so the court shall assume that such payments are those that were due for the statutory violations of G.L.c.186, §15B.

4. G.L. c.239, §8A: The second question before the court is whether that portion of G.L. c.239, §8A, which allows for tenants in summary process cases—where the tenancy has been terminated "without fault" —to be awarded possession if they deposit the difference between the amount of their claim and the amount of

the landlord's claim. This is important because if that statute affords this opportunity in this case, and the tenants were to timely deposit such funds with the court, the landlord would be required to commence a new summary process case for possession.

5. The relevant language of G.L. c.239, §8A states in the fifth paragraph:

If the amount found to be due the landlord exceeds the amount found to be due the tenant or occupant, there shall be no recovery of possession if the tenant or occupant, within one week after having received written notice from the court of the balance due, pays to the clerk the balance due the landlord, together with interest and costs of suit, less any credit due the tenant or occupant for funds already paid by him to the clerk under this section. (Emphasis added)

6. Because there are no amounts found to be due the tenants (all such funds having been paid to them in advance of trial), this portion of the statute does not afford the tenants the right to deposit funds owed to the landlord with the court and win possession. Accordingly, possession shall be awarded to the landlord.

7. G.L. c.239, §9; Stay of Proceedings: The tenants have asserted that one of them, Mr. Moreno, has serious medical issues and the tenants request—in accordance with G.L. c.239, §9—that the court enter a stay on the judgment for possession and $1,050 plus court costs and interest that would otherwise enter at

this time. A hearing shall be scheduled for March 9, 2017 at 10:00 a.m. in accordance with G.L. c.239, §9 to determine whether such a stay shall enter.

8. Next Hearing Scheduled: This matter shall be scheduled for further hearing consistent with this order on March 9, 2017 at 10:0 a.m.

/s/Robert Fields, Associate Justice

March 1, 2017

CERTIFICATE OF COMPLIANCE

I, Gabriel L. Fonseca, Esq., certify that the brief complies with the rules of court that pertain to the filing of briefs, including, but not limited to: Rule 16(a)(13) (addendum); Rule 16(e) (references to the record); Rule 18 (appendix to the briefs); Rule 20 (form and length of briefs, appendices, and other documents); and Rule 21 (redaction). Compliance with Rule 20 was achieved by using Times New Roman font in 14-point size. The number of non-excluded words of this brief total 4653. The word processing system used was Microsoft Word, Version 2021.

COMMUNITY LEGAL AID

Gabriel L. Fonseca, Esq. (BBO# 706870)

One Monarch Place, Ste. 400
Springfield, MA 01144
T: (413)686-9007 F: (413)746-3221
gfonseca@cla-ma.org

CERTIFICATE OF SERVICE

I, Gabriel L. Fonseca, Esq., certify that on behalf of Appellant Laural Charland, I served this Appellant's Brief and Record Appendix for Appeals Court case No. 2022-P-0300, Cassandra Ferreira v. Laural Charland & Others, on Ms. Ferreira's Attorney Lawrence Farber, Esq., Farber and Lindley, LLC, 30 Boltwood Walk, Front 101, Amherst, MA 01002, via electronic service on May 16, 2022; I served copies of same on Defendants Jason Charland and James Vazquez by first class mail on May 16, 2022.

COMMUNITY LEGAL AID

Gabriel L. Fonseca, Esq. (BBO# 706870)

One Monarch Place, Ste. 400
Springfield, MA 01144
T: (413)686-9007 F: (413)746-3221
gfonseca@cla-ma.org